

BNS 2023

Bharatiya Nyaya Sanhita, 2023

Bharatiya Nyaya Sanhita (BNS), 2023

User Query :

My parents received a phone call in which the caller sounded exactly like me and claimed that I had been detained after an accident and urgently needed money. The caller also sent them a short video that appeared to show me asking for help. My parents transferred ₹75,000 before contacting me and discovering that the voice and video had been artificially generated. What legal provisions may apply?

Job Id. :

qwen3-30b/Scenario 14/Bharatiya Nyaya Sanhita (BNS), 2023

Prepared by :

NyaySahayak

Date :

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 318 **(4) — Cheating and dishonestly inducing delivery of property**

The deception caused the parents to transfer ₹75,000.

Section 319 **— Cheating by personation**

The offender represented themselves as the victim.

Section 336 **— Forgery**

May apply if the synthetic video/other electronic record satisfies the statutory false-electronic-record and intent requirements.

Section 340 **(2) — Using a forged document or electronic record as genuine**

May apply if a forged electronic record was knowingly used as genuine to cheat.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The core BNS theory is cheating plus personation. Forgery provisions are secondary and depend on whether the generated media is legally a false electronic record within the statute.

✓ **STRENGTHS & RIGHTS**

1 The parents' transfer directly demonstrates reliance on the impersonation.

✗ **RISKS & OBLIGATIONS**

1 Do not use old IPC 420 or non-existent BNS sections; the enacted BNS cheating provisions are sections 318 and 319.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Document exactly how the caller represented themselves and how the transfer was induced.
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